

THE HONOURABLE SRI JUSTICE K.SURENDER

CRIMINAL PETITION No.7533 of 2022

ORDER:

1. This Criminal Petition is filed to quash the proceedings against the petitioner/Accused in C.C.No.1365 of 2021 for the offences under Sections 406, 420 and 506 of IPC on the file of III Additional Chief Metropolitan Magistrate at Nampally.

2. According to the 2nd respondent, he was given an order for supply of 50,000 KN-95 face-masks to the Health Department of Government of Andhra Pradesh. He approached one Mr.P.V.R.Somayajulu, who introduced the petitioner herein, who is resident of Delhi, stating that he had good reputation and would supply KN-95 face-masks as required. Petitioner sent photographs of the masks on Whatsaap. It was also informed by petitioner that the total cost would be Rs.66,81,750/- for 50,000 pieces. The said amount was transferred to the account of the petitioner by way of RTGS by respondent. Thereafter petitioner supplied 50,000 KN-95 face-masks but the Health Department returned the said masks on the ground of inferior quality. When contacted by the respondent, the petitioner informed to return the said masks and he would in turn return the entire amount of Rs.66,81,750/-. However, after

returning the said masks, the petitioner was giving evasive replies and did not return the amount, for which reason criminal complaint was filed with the Banjara Hills Police Station. The Banjara Hills Police, having registered the Crime, completed investigation and filed Charge Sheet for the offences under Sections 406, 420 and 506 of IPC.

3. According to the complainant, an order was placed with the petitioner for supply of 50,000 pieces of KN-95 quality face-masks. It is not disputed that the face masks were supplied to the Government as ordered by the 2nd respondent. The amount that was agreed was also paid to the petitioner. For the reason of the masks being of inferior quality and refused by the Health Department, the masks were sent back to this petitioner.

4. The face masks that were sent by the petitioner were not acceptable to the Health Department for the reason of its inferior quality. The agreement between the petitioner and the 2nd respondent was for supply of 50,000 KN-95 face-masks which was agreed upon and supply was made. However, when the masks sent were of inferior quality, it cannot be said that the petitioner had an intention to cheat the 2nd respondent from the inception. No written

contract was entered into by the petitioner and the respondent agreeing upon any terms or conditions.

5. To attract an offence under Section 420 of IPC, there must have been fraudulent misrepresentation pursuant to which the person induced must have delivered property believing the representation. In the present case, even according to the 2nd respondent, he approached the petitioner herein for supply of material, which was supplied. In the event of petitioner's supply was rejected on the ground of inferior quality, the grievance would lie either to the consumer forum or by filing a civil suit for damages, since there was no agreement regarding quality nor it is stated that the petitioner had made any false promises at the time of agreeing to supply the masks. Every business transaction in which material was refused, it cannot be said that it amounts to criminal offence of either cheating or criminal misappropriation. At best, the transaction can be said to be breach of agreement or contract in between the parties and it does not satisfy any of the ingredients of either Section 420 or 406 of IPC.

6. In the result, the proceedings against the petitioner/accused in C.C.No.1365 of 2021 on the file of III Additional Chief Metropolitan Magistrate at Nampally, are hereby quashed.

7. Criminal Petition is allowed. Consequently, miscellaneous applications pending, if any, shall stand disposed.

Date:28.02.2023
kvs

K.SURENDER, J

THE HON'BLE SRI JUSTICE K.SURENDER

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Dated: 28.02.2023

kvs

